

Criminal Law Analysis: The "Fake Front"

Theory of Fraud under Art. 286 § 1 KK

Introduction to the Legal Strategy and Factual Paradigm

The prosecution of economic fraud (*oszustwo*) under Article 286 § 1 of the Polish Penal Code (Kodeks karny, hereafter KK) represents one of the most doctrinally demanding areas of Polish criminal law. In the realm of e-commerce and business-to-business (B2B) or high-value business-to-consumer (B2C) transactions, prosecutorial authorities demonstrate a well-documented reluctance to initiate criminal proceedings when a transaction results in non-delivery. The systemic default is to categorize such failures as mere civil disputes over the non-performance of contractual obligations (*niewykonanie zobowiązania cywilnoprawnego*). This institutional inertia is anchored in the stringent requirement to prove *dolus directus coloratus*—a specific, colored, direct intent to defraud that must exist at the exact moment the perpetrator acts to deceive the victim and induce the disposition of property.¹ If a seller takes a prepayment and subsequently fails to deliver the goods and fails to issue a refund, the act alone is insufficient for criminal liability unless the prosecution can prove that, at the very moment the contract was concluded, the seller harbored the specific intent not to perform. In the case concerning Magnus Branthelm, who executed a transfer of 155,000 PLN (comprising a 150,000 PLN SWIFT transfer and a subsequent 5,000 PLN transfer on January 12, 2026) to the entity GPUcomputer for a custom machine learning workstation, a standard complaint alleging merely that "they took the money and did not deliver" is statistically highly likely to result in a refusal to initiate proceedings (*odmowa wszczęcia dochodzenia/śledztwa*). To circumvent this prosecutorial barrier, it is imperative to shift the analytical focus from the post-payment failure to perform to the pre-payment affirmative misrepresentations. This report exhaustively analyzes the "fake front" theory of fraud. This theory posits that the operators of GPUcomputer obtained the 155,000 PLN by affirmatively and deliberately misrepresenting the fundamental nature, capacity, and operational reality of the business prior to the payment. By staging the appearance of a physical, operating computer store in Kraków with comprehensive insurance protocols, while the reality was a virtual-office shell operated by an unregistered proxy whose registered owner works full-time on a Dutch factory production line, the perpetrators committed an active deception. This strategic pivot ensures that the focus of the criminal inquiry rests on objectively verifiable falsehoods present *before* the financial disposition, thereby satisfying the rigorous requirements for demonstrating *dolus directus coloratus* at the critical moment of contract formation.

Section 1: The Doctrinal Architecture of Article 286 § 1 KK

Article 286 § 1 KK stipulates that criminal liability arises for anyone who, in order to achieve a financial gain, causes another person to make a disadvantageous disposition of their own or

someone else's property by misleading them (*wprowadzenie w błąd*), exploiting their mistake, or exploiting their inability to properly understand the action undertaken.³ As a common crime (*przestępstwo powszechne*), it can be committed by any individual capable of bearing criminal liability.³ The architecture of this offense rests on three indispensable pillars: the deceptive act, the resulting disadvantageous disposition of property, and the specific causal and intentional nexus linking them.

The Mechanics of Deception (*Wprowadzenie w błąd*)

The element of *wprowadzenie w błąd* requires active or passive conduct by the perpetrator that creates a definitive discrepancy between the victim's perception of reality and the actual, objective state of affairs.⁶ The Polish Penal Code does not prescribe or limit the specific methods, instruments, or narratives that a perpetrator may utilize to achieve this deception.⁴ Any action that successfully distorts reality and influences the victim's proprietary decision satisfies this element, provided it pertains to circumstances that are material to the decision to dispose of the property.⁴

Crucially, in the context of e-commerce, the deception must relate to a present or past fact, not merely a future promise or a predictive statement of future intention. A statement such as "I will deliver the goods next week" is a future promise; establishing that it was a lie requires proving the internal, subjective state of mind of the promisor at that exact moment. Conversely, a statement such as "I currently have the goods in my physical store" is a representation of a present, verifiable fact.⁶ The deliberate falsification of a present fact is significantly easier to substantiate evidentially and serves as a highly robust anchor for criminal proceedings. In instances involving online stores, creating false appearances regarding the availability of goods, the operational status of the business, or the legal identity of the merchant constitutes a classic realization of the *wprowadzenie w błąd* element.⁶

Causation and the Disadvantageous Disposition of Property (*Niekorzystne Rozporządzenie Mieniem*)

The core of the offense materializes when the deception causally induces the victim to execute a disadvantageous disposition of property.⁵ The causal link is strict: the deception must precede the disposition, and the disposition must be a direct result of the victim operating under the influence of the fraudulently induced error.⁷

The jurisprudential debate surrounding what constitutes a "disadvantageous" (*niekorzystne*) disposition is critical to evaluating the GPUcomputer case. Historically, some doctrines favored an objective approach, equating a disadvantageous disposition strictly with a quantifiable balance-sheet loss or actual economic damage.⁹ However, the overwhelming consensus in contemporary Polish jurisprudence, consistently upheld by the Supreme Court and appellate courts, strongly favors a subjective or mixed-subjective criterion.⁹

Under the subjective criterion, a disposition is disadvantageous if it worsens the property situation of the victim from their own perspective, even if a theoretical economic equivalence of performance was promised or eventually provided.¹⁰ It is entirely sufficient to establish that

the victim would not have concluded the contract or transferred the funds had they possessed true and accurate knowledge of the circumstances that were the subject of the deception.⁵ The law recognizes that property owners have an absolute right to make informed decisions regarding their assets based on accurate assessments of reality.

Furthermore, the concept of a disadvantageous disposition extends fundamentally to the unconsented elevation of transactional risk.³ When a victim enters into an agreement, they accept a specific, calculated risk based on the representations made by the counterparty. If the counterparty utilizes deception to substitute this accepted risk profile with a significantly higher, undisclosed risk—for example, by concealing poor financial health, lacking the capacity to perform, or misrepresenting the nature of the entity—the very act of exposing the victim's capital to this elevated risk constitutes a disadvantageous disposition.⁷ This holds true even if the ultimate financial loss has not yet permanently crystallized or if the perpetrator theoretically intended to return the funds later. The crime of fraud does not require the infliction of permanent, irreparable damage; it requires the fraudulent inducement of a disposition that the victim considers disadvantageous.¹⁴

Importantly, Polish courts consistently reject defenses based on the victim's alleged failure to perform due diligence. The fact that a victim could have theoretically avoided the error by exercising greater caution, or that they acted with naivety or credulity, is entirely irrelevant to the determination of criminal liability.⁴ The protection afforded by Article 286 § 1 KK is not limited only to those who conduct exhaustive background checks; it protects the integrity of property dispositions against deliberate deceit.

Intent and Timing: The Imperative of *Dolus Directus Coloratus*

Article 286 § 1 KK defines a directional offense (*przestępstwo kierunkowe*) requiring *dolus directus coloratus*—a specific, colored, direct intent.¹ The perpetrator must act with the explicit aim of achieving a financial gain (*w celu osiągnięcia korzyści majątkowej*) and must specifically intend to use the method of deception (or exploitation of error) to induce the disadvantageous disposition.¹⁴ The intent must encompass all statutory elements of the offense and must exist simultaneously with the execution of the deceptive act.¹⁶

This rigorous requirement is precisely why post-payment non-performance is often legally insufficient. If an entrepreneur accepts payment with a genuine intention to fulfill the order but is subsequently thwarted by supply chain failures, bankruptcy, or incompetence, they lack the requisite *dolus directus coloratus* at the moment the contract was formed. Such scenarios belong in civil courts.⁷

However, when a transaction is built upon a foundation of premeditated, affirmative misrepresentations regarding present facts—such as fabricating physical infrastructure or concealing the true identity of the operator—the evidentiary landscape shifts dramatically. The effort required to construct a digital facade, register a business under a proxy, and draft deceptive assurances requires significant forethought and active staging. This architectural premeditation demonstrates unequivocally that the intent to deceive was fully formed *prior* to the receipt of funds, thereby perfectly satisfying the temporal and specific requirements of *dolus directus coloratus*.

Section 2: Analysis of the specific "Fake Front" Misrepresentations

The viability of the criminal complaint hinges on dissecting the specific, pre-payment misrepresentations made by GPUcomputer and aligning them with the evidentiary standards of Article 286 § 1 KK. The aggregate effect of these misrepresentations was to create a staging of commercial safety and legitimacy that fraudulently induced the transfer of 155,000 PLN.

Misrepresentation 1: The Operational Reality and Absentee Ownership

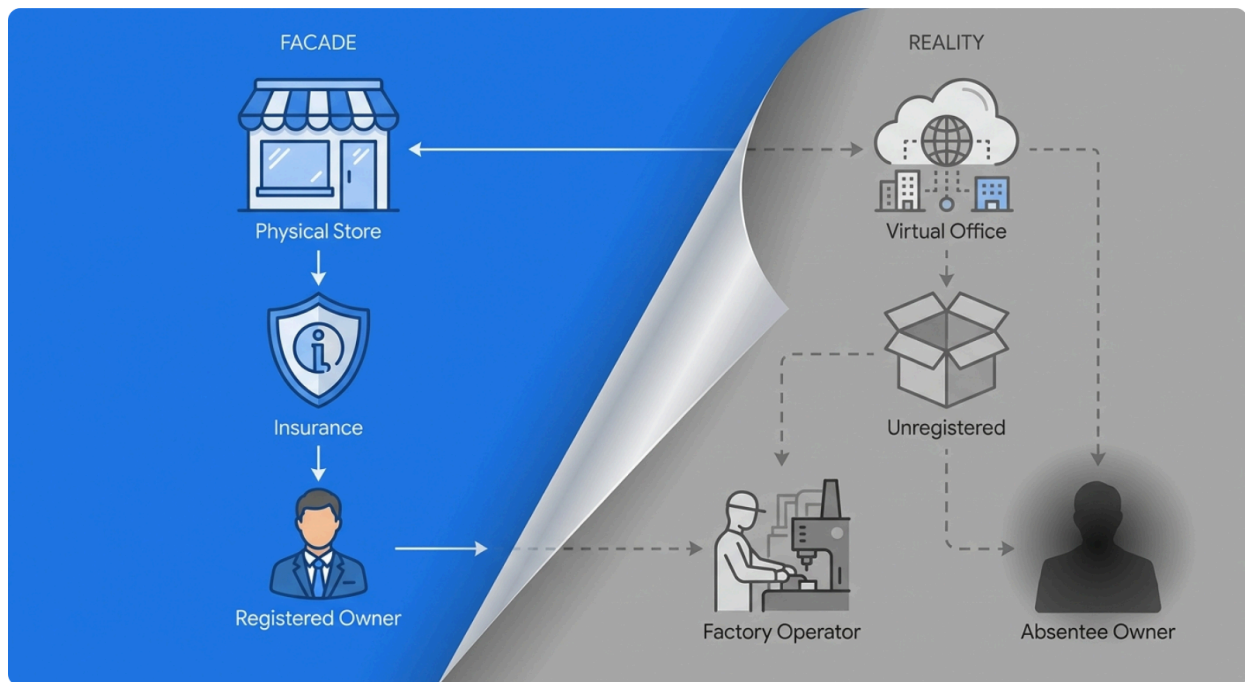
The foundational misrepresentation concerns the identity and operational capacity of the business entity itself. GPUcomputer was presented to the public and to Magnus Branthelm as a genuine, operating computer business located in Kraków, legally owned and presumably operated by Mateusz Szklarski.

The evidentiary reality directly contradicts this presentation. Mateusz Szklarski, the registered owner in the Central Registration and Information on Business (CEIDG), has maintained continuous, full-time employment as a manual worker on a factory production line in the Netherlands (Sims Lifecycle Services, Son en Breugel; formerly AME, HQ Pack, RPI Print, HKC Europe) since at least 2022. The physical and operational impossibility of an individual simultaneously working a full-time manual labor shift in the Netherlands while managing the day-to-day complexities of a highly specialized custom PC building enterprise in Kraków is indisputable.

This is not a minor administrative discrepancy; it is a fundamental distortion of the counterparty's identity and capacity.¹⁸ When a consumer or business entity transfers 155,000 PLN, they rely critically on the solvency, legal accountability, and professional competence of the specific entity and individual named on the commercial documentation. By presenting a registered owner who is effectively an absentee proxy, while the actual control and communication are handled by an unregistered third party (Waldemar Łopata, operating under the "3dkrakow" alias), the enterprise systematically deprives the buyer of the ability to accurately assess counterparty risk.

Concealing the true identity of the person controlling the business operations is a recognized method of *wprowadzenie w błąd*.¹⁸ The buyer is led to believe they are engaging with a legally accountable entrepreneur present in the jurisdiction, possessing the requisite skills and assets to fulfill a highly technical order. The reality—an offshore factory worker acting as a legal shield for an unregistered operator—represents an unconsented and catastrophic elevation of transactional risk.

Architecture of the Commercial Facade vs. Operational Reality



The structural disparity between the business model represented to the buyer prior to payment and the factual operational reality of the enterprise.

Misrepresentation 2: The Fabrication of Physical Retail Infrastructure

The website operated by GPUcomputer explicitly stated: "We present selected products in our store." Furthermore, the Google Maps integration on the site pinned the CEIDG registered address (ul. Mogilska 16/7, Kraków) with the label "Our office."

These statements constitute affirmative, verifiable representations of present geographical and infrastructural facts. The reality is that the address at ul. Mogilska 16/7 is a well-known commercial virtual office service. Virtual offices provide mailing addresses and administrative forwarding; they do not provide retail storefronts, showrooms, or secure warehousing capable of storing sensitive, high-value machine learning workstation components.

The claim of possessing a physical store where products are presented is categorically false. This fabrication is deliberately designed to project an image of commercial stability, physical permanence, and liquidity. For a buyer preparing to transfer a significant sum, the existence of a physical store provides a psychological and practical assurance of legitimacy; it suggests a business with sunk costs, physical assets, and a location where legal recourse or physical inspection is possible. By lying about the existence of this infrastructure, the perpetrators successfully manipulated the victim's risk assessment, fulfilling the requirement of misleading regarding circumstances decisive to the disposition of property.⁵

Misrepresentation 3: The Illusion of Financial Safeguards (Insurance)

The website further represented: "Each shipment is carefully packaged and insured for its full value." In the context of a 155,000 PLN transaction, insurance is not merely a supplementary service; it is a fundamental contractual safeguard and a critical mechanism for risk mitigation. While the physical act of packaging and initiating a specific shipment policy technically occurs in the future (post-payment), the underlying representation implies the present existence of a commercial capability and a standing operational policy to insure high-value goods. The subsequent communications from the operators expose this claim as a deceit. On February 24, 2026, the operators claimed that "customs cleared the goods today," implying the goods were in transit and under their control. Yet, on May 13, 2026, they contradicted this entirely, stating "the Hong Kong supplier went bankrupt and the parts never arrived."

These mutually exclusive narratives demonstrate that the goods were almost certainly never acquired or shipped. By logical extension, if no goods were ever secured for shipment, the promised full-value insurance policy was never procured or attached to any consignment. The assertion of a comprehensive insurance protocol was a calculated falsehood designed to lower the victim's financial defenses and create a false sense of security regarding the safety of the capital.²⁰ The failure to possess the capacity or intent to utilize the promised financial safeguards constitutes a direct misrepresentation of the safety parameters of the transaction, inducing a disadvantageous disposition of property through the unconsented elevation of risk.⁷

The Aggregate Effect: The Staged Appearance of Safety

When evaluating these misrepresentations cumulatively, it becomes evident that the perpetrators constructed an elaborate "fake front." The combination of a purportedly local registered owner, the claim of physical retail infrastructure, and the explicit guarantee of full-value insurance synergistically sells an illusion of legitimacy and absolute security. The victim transferred 155,000 PLN under the explicit belief that they were interacting with a verified, physically locatable, insured, and legally accountable Polish enterprise.

Had the true facts been known—that the entity was a virtual-office shell, operated remotely by an unregistered individual hiding behind an absentee factory worker, devoid of any physical store or verifiable insurance capacity—the transfer of funds would never have occurred. This direct causal link between the fabricated commercial facade and the financial disposition perfectly satisfies the subjective materiality test required by Polish jurisprudence for Article 286 § 1 KK.⁵ The intent to deceive is embedded within the very architecture of the business presentation.

Section 3: The Boundary Between Actionable Deception and Marketing Puffery (*Dolus Bonus*)

Anticipating potential defense strategies, it is essential to address the legal boundary between criminally actionable misrepresentation (*dolus malus*) and acceptable marketing exaggeration or puffery, recognized in legal theory as *dolus bonus*.²¹ The defense may attempt to characterize the website claims regarding the store and insurance as standard promotional

rhetoric not intended to be interpreted as binding factual guarantees.

The demarcation line in Polish and broader European jurisprudence rests on the verifiability and objective factual nature of the claim.²⁰ *Dolus bonus* encompasses subjective expressions of opinion, qualitative boasting, and generalized hyperbole. Statements such as "We offer the best customer service," "Our workstations are the fastest," or "Unbeatable quality" are recognized by the average consumer as rhetorical devices. They are legally tolerated because they lack empirical precision and are not intended to be taken as literal, verifiable facts.²² The use of exaggeration is permissible, provided it does not distort the fundamental reality of the transaction in a manner that influences the economic behavior of an average consumer.²³ Conversely, the claims deployed by GPUcomputer cross definitively into the realm of *dolus malus*.

First, the statement "We present selected products in our store" is a binary, verifiable assertion of geographic and infrastructural fact. A physical retail space either exists and is utilized for product presentation, or it does not. In the context of a commercial entity operating exclusively out of a virtual office service, this statement is not an exaggeration of a small store's capacity; it is a total, objective fabrication of the store's existence. It cannot be shielded as puffery because it is an outright lie concerning physical reality.

Second, the guarantee that "Each shipment is carefully packaged and insured for its full value" relates directly to specific financial instruments and contractual liability.²⁰ Insurance is a defined legal and financial concept. Asserting the existence of full-value coverage when no such commercial policy is maintained, and no individual policy is ever procured, is a material falsehood regarding the financial safety parameters of the contract.

Under Polish jurisprudence concerning unfair commercial practices and misleading advertising, which heavily informs the interpretation of deception in economic crimes, a representation is unlawful when it creates a false image of the product, service, or business entity that is significant enough to alter the purchasing decision.²⁴ In the context of transferring 155,000 PLN—a sum requiring a high degree of trust—the existence of physical infrastructure and comprehensive insurance are highly material facts.²⁴ The average consumer relies on these specific factual assurances to mitigate the inherent risks of remote transactions. Therefore, the deliberate falsification of these specific elements transcends marketing puffery and constitutes the precise method of *wprowadzenie w błąd* required for a conviction under Article 286 § 1 KK.

Section 4: Identity Deception, Capacity, and the Overlap with *Firmanctwo*

The operational structure of GPUcomputer reveals a sophisticated obfuscation of identity that intersects significantly with the fiscal crime of *firmanctwo*, defined under Article 55 of the Fiscal Penal Code (Kodeks karny skarbowy, KKS).

The Mechanics of *Firmanctwo* (Art. 55 KKS)

Firmanctwo occurs when a taxpayer conceals the true nature, existence, or scale of their business activities by conducting them under the name, firm, or identity of another entity or individual, thereby exposing tax revenues to depletion.²⁶ This is colloquially known as operating

through a "słup" (frontman). If Waldemar Łopata, an unregistered individual, is utilizing the registered business of Mateusz Szklarski (the absentee worker in the Netherlands) to conduct commercial activities and receive funds, this constitutes a textbook realization of *firmanctwo*.²⁶ While *firmanctwo* is fundamentally a fiscal offense aimed at protecting the financial interests of the state²⁶, its presence in this factual matrix radically strengthens the narrative for the Article 286 § 1 KK fraud charge. The necessity to utilize a legal proxy demonstrates a systemic, premeditated intent to conceal the true operator's identity and assets from all external scrutiny—both from state tax authorities and from commercial counterparties.

Synergistic Deception of Identity and Capacity

In the context of criminal fraud, misrepresenting the identity of the contracting party is a deeply established form of *wprowadzenie w błąd*.¹⁸ The architecture of the "fake front" serves a dual purpose: it evades fiscal responsibility and simultaneously engineers a deceptive commercial facade to ensnare buyers.

When a victim engages with a registered sole proprietorship (JDG), they logically assume that the registered owner is the primary actor bearing the legal, financial, and operational responsibility for the enterprise. By utilizing an absentee factory worker as the legal face of the company, the actual operators ensure that the registered entity is effectively judgment-proof. Even if a victim successfully obtains a civil judgment against Mateusz Szklarski, enforcing that judgment against a foreign factory worker for a massive commercial debt is practically insurmountable.

Meanwhile, the true architect and operator of the business, Waldemar Łopata, remains legally invisible. Because he is not a registered party to the contract, he is shielded from direct civil liability for the breach. This staging of a remote shell is not merely a tax evasion tactic; it is the fundamental mechanism of the fraud. It is designed to secure the buyer's funds while simultaneously nullifying their ability to seek effective legal recourse. By deceiving the buyer regarding the true identity and capacity of the entity they are contracting with, the perpetrators execute a profound *wprowadzenie w błąd* that directly enables the fraudulent extraction of 155,000 PLN.

Section 5: Attribution and Co-Perpetration (Współsprawstwo)

A primary investigative challenge in prosecuting complex economic crimes is attributing specific deceptive acts and the overarching fraudulent intent to individual actors, particularly when the legal ownership and operational control are divided.

Principles of Co-perpetration under Article 18 § 1 KK

Under Polish criminal law (Art. 18 § 1 KK), co-perpetration (*współsprawstwo*) occurs when two or more persons execute a prohibited act jointly and in agreement.²⁹ Crucially, the jurisprudence of the Polish Supreme Court and appellate courts dictates that the agreement forming the basis of co-perpetration does not require formal articulation, written contracts, or explicit verbal coordination. It can be a tacit agreement (*porozumienie dorozumiane*), which is

inferable directly from the perpetrators' coordinated actions and their mutual participation in the criminal enterprise (*per facta concludentia*).²⁹

Furthermore, a co-perpetrator is not required to personally execute every single statutory element of the crime.³² It is not necessary for one individual to both write the deceptive website text and personally withdraw the defrauded funds. It is entirely sufficient that their combined actions fulfill all the elements of the offense, provided each participant is aware of the overall criminal design, accepts the division of roles, and embraces the shared goal of achieving an illicit financial gain.²⁹

Apportioning Liability: Mateusz Szklarski and Waldemar Łopata

In the context of GPUcomputer, the division of roles clearly points to a coordinated scheme that fulfills the criteria for co-perpetration.

The Role of Waldemar Łopata (The Operator):

As the individual managing the @gpucomputer mailboxes, utilizing the "3dkrakow" branding, and handling the day-to-day communications and negotiations, Waldemar acts as the direct architect of the deceptive interface. He is the active agent disseminating the false claims regarding the store, the insurance, and the status of the orders. His status as an unregistered entity indicates a deliberate strategy to remain legally insulated while actively engineering the *wprowadzenie w błąd*. His actions constitute the primary physical execution of the deception.

The Role of Mateusz Szklarski (The Conduit): As the registered owner in CEIDG, Mateusz provides the indispensable legal and financial infrastructure required to legitimize the facade. Without his NIP (tax identification number), registered address, and corporate bank accounts, the enterprise could not accept commercial orders or receive the 155,000 PLN SWIFT transfer.⁵ His prolonged and continuous physical absence in the Netherlands proves that he could not have been operating the business innocently or in a supervisory capacity. By knowingly allowing his identity to be used to receive massive financial transfers for a highly technical business he does not run, he provides vital, conscious cooperation in the scheme.

The prosecution can robustly argue that both men acted jointly under a tacit agreement: one provided the deceptive operational interface to induce the victims, and the other provided the deceptive legal vessel to securely receive and process the funds. Both actors shared the intent to extract capital from the victim by maintaining the "fake front," rendering them co-perpetrators under Article 18 § 1 KK in conjunction with Article 286 § 1 KK.

Section 6: Evidentiary Sufficiency, Preservation, and Gap Analysis

To survive the initial prosecutorial screening and advance from a mere notification to an active investigation, the evidence presented must robustly substantiate the pre-payment deception, moving the narrative decisively beyond a simple failure to perform.

The Imperative of Evidence Preservation (Notarial Protocol)

A critical vulnerability in pursuing internet-based fraud is the ephemeral nature of digital evidence. Website text, Google Maps pins, and online contact pages can be altered or deleted

by the perpetrators within seconds of a dispute arising. In Polish evidentiary practice, simple unauthenticated screenshots or self-generated printouts are frequently challenged by defense counsel as highly susceptible to manipulation and therefore lacking probative value.³⁴

To secure the digital evidence to an unassailable evidentiary standard, it is an absolute necessity to immediately utilize a Notarial Protocol (*protokół z otwarcia strony internetowej*).³⁴

A Polish notary public possesses the legal authority to open the specific web pages on their own secure equipment and formally authenticate the contents observed at a precise date and time.³⁴ The resulting protocol possesses the rigorous legal status of an official public document (*dokument urzędowy*), rendering its contents virtually immune to defense challenges regarding authenticity or tampering.³⁵

The client must immediately secure notarized captures of the most critical pages establishing the "fake front": the page containing the "We present selected products in our store" claim, the page detailing the "insured for its full value" guarantee, and the contact page displaying the Mogilska virtual office address and the "Our office" map pin.

Ranking of Misrepresentations and Prosecutorial Gap Analysis

The following table categorizes the three core misrepresentations by their current provability based on the client's holdings, their legal strength in establishing Art. 286 KK, and identifies the specific evidentiary gaps the prosecution must utilize state powers to close.

Rank	Misrepresentation	Provability (Based on Client's Current Evidence)	Legal Strength for Establishing Art. 286 KK	Critical Prosecutorial Gaps to Close (Requires State Action)
1	The Virtual Office vs. Physical Store Claim	Extremely High. The nature of ul. Mogilska 16/7 can be objectively verified instantly via public registers (KRS/CEIDG) and physical inspection. The deceptive website text can be secured	Very High. Constitutes a direct, material fabrication regarding physical infrastructure. It is highly comprehensible to a prosecutor as an affirmative deceptive inducement rather than a business	Verification of the exact dates the text was live (via Wayback Machine logs or server requests) to definitively prove the text was active and visible on or before January 2, 2026.

		immutably via a Notarial Protocol.	failure.	
2	The Absentee Owner / Proxy Front	High. Mateusz's continuous full-time employment in the Netherlands since 2022 is objectively verifiable through international employment records, cross-border tax filings, and aggregated OSINT (LinkedIn data).	Very High. Establishing the proxy nature of the business is the strongest indicator of premeditated structural deception (<i>dolus directus</i>). It proves systemic evasion of counterparty identity and accountability.	Execution of banking subpoenas to obtain IP login logs for the corporate accounts. Identifying whether the Dutch IP or a Kraków IP controlled the funds is essential to legally bind the co-perpetrators.
3	The Fake Insurance Guarantee	Medium. The total absence of a payout or insurance claim offer is highly suspicious. The contradictory emails (claiming customs clearance vs. supplier bankruptcy) provide strong circumstantial proof of deceit	High. The false promise of insurance materially alters the financial risk profile of the transaction, directly inducing a disadvantageous disposition of property.	Proving a negative (the non-existence of an insurance policy) is difficult for a civilian. The prosecutor must subpoena corporate financial records and communications to confirm no business insurance

		regarding the shipping status.		policy was ever active.
--	--	--------------------------------	--	-------------------------

The aggregate "fake front" strategy relies on combining Rank 1 and Rank 2 misrepresentations to establish a highly credible initial threshold of reasonable suspicion (*uzasadnione podejrzenie popełnienia przestępstwa*). Establishing this threshold is the key to forcing the prosecutor to open a formal investigation, thereby unlocking the state's subpoena powers necessary to resolve Rank 3 and trace the banking IP logs.

Section 7: Honest Likelihood Assessment

The Polish prosecutorial system operates under significant caseload pressures and is culturally predisposed to aggressively screen out commercial disputes, frequently routing B2B or B2C non-delivery complaints to the civil courts under the label of a "mere civil dispute" (*sprawa o charakterze cywilnoprawnym*).

If a criminal notification (*zawiadomienie*) is filed relying solely on the standard "concealment theory"—arguing merely that the seller took the funds, failed to deliver the workstation, and subsequently concealed the reasons for the failure or stopped communicating—the likelihood of the prosecutor issuing an immediate refusal to initiate proceedings (*odmowa wszczęcia dochodzenia/śledztwa*) is exceedingly high, often surpassing 80% in initial commercial filings. However, deploying the **affirmative pre-payment misrepresentation ("fake front") theory** dramatically alters this prosecutorial calculus. By meticulously detailing the fabricated physical store, the verifiable virtual office reality, the absentee registered owner, and the unregistered shadow operator, the complaint transitions from a narrative of "failed contract" to a narrative of "premeditated systemic deception."

This strategy preemptively strips the perpetrators of the standard "business failure" defense. A legitimate business may indeed fail to fulfill a contract due to an unforeseen supplier bankruptcy; however, a legitimate business does not fabricate a physical retail storefront, hide its true operational controller, and register its legal ownership to an absentee factory worker in a foreign jurisdiction.

- **Phase 1: Surviving Screening and Opening the Investigation.** The likelihood of an investigation being officially opened (*wszczęcie śledztwa*) based on the comprehensively documented "fake front" theory is **high (estimated at 70-85%)**. When presented with objective, notarized falsehoods regarding physical infrastructure and verifiable proxy ownership, a prosecutor's refusal to investigate borders on a dereliction of duty. Such a refusal would be highly vulnerable to a successful appeal to a court (*zażalenie na postanowienie o odmowie wszczęcia*).
- **Phase 2: Advancing to the Filing of Charges.** The likelihood of formal charges being filed (*przedstawienie zarzutów*) is contingent upon the results of the state's subpoena powers. If the banking IP logs trace the financial control to Waldemar Łopata, and the financial forensics confirm the 155,000 PLN was rapidly dissipated or transferred

rather than legitimately allocated for inventory procurement, the likelihood of securing charges against both actors under Art. 286 § 1 KK in conjunction with Art. 294 § 1 KK (property of significant value) is **moderate to high (60-75%)**.

In summary, the "fake front" theory represents the most robust and statistically viable method to elevate this case from a probable civil dismissal to a serious, active criminal investigation. By focusing relentlessly on the structural lies that induced the payment, rather than the subsequent failure to perform, the strategy aligns perfectly with the stringent requirements of Polish economic criminal law.

Section 8: Drafting Payoff – Recommended Pleading Wording

To operationalize this strategy, the formal notification of suspected crime (*Zawiadomienie o podejrzeniu popełnienia przestępstwa*) must explicitly frame the pre-payment misrepresentations as the precise *method* of deception. The following Polish text is drafted for direct inclusion in the factual justification (*uzasadnienie*) of the complaint, specifically engineered to trigger the Art. 286 § 1 KK mechanisms and preempt the standard "civil dispute" dismissal.

Proponowana treść do Uzasadnienia Zawiadomienia:

„Zawiadamiający pragnie stanowczo podkreślić, iż w niniejszej sprawie nie mamy do czynienia ze zwykłym niewywiązaniem się z umowy cywilnoprawnej, lecz z zaplanowanym i zrealizowanym z góry powziętym zamiarem bezpośrednim kierunkowym (*dolus directus coloratus*) oszustwem, polegającym na wykreowaniu całkowicie fikcyjnego wizerunku podmiotu gospodarczego w celu wyłudzenia mienia o znacznej wartości. Sprawcy, działając wspólnie i w porozumieniu, celowo i z premedytacją wprowadzili mnie w błąd co do kluczowych, obiektywnych okoliczności faktycznych, które miały decydujący wpływ na moje rozporządzenie mieniem w kwocie 155 000 PLN.

Wprowadzenie w błąd (*wprowadzenie w błąd*) nastąpiło w fazie przedkontraktowej, poprzez aktywne działania sprawców obejmujące:

1. **Fikcję infrastruktury:** Przedstawienie na stronie internetowej kategoriycznych oświadczeń o posiadaniu fizycznego sklepu, w którym prezentowane są towary („Prezentujemy wybrane produkty w naszym sklepie”), podczas gdy w rzeczywistości wskazywany adres (ul. Mogilska 16/7, Kraków) jest wyłącznie komercyjnym wirtualnym biurem, nieposiadającym absolutnie żadnego zaplecza magazynowego ani ekspozycyjnego.
2. **Fikcję tożsamości i zdolności operacyjnej:** Zatajenie rzeczywistej struktury operacyjnej poprzez firmanctwo. Podmiotem zarejestrowanym w CEIDG jest Mateusz Szklarski, który – jak wynika ze zgromadzonych dowodów – od 2022 roku przebywa nieprzerwanie w Holandii, pracując w pełnym wymiarze czasu jako pracownik fizyczny linii produkcyjnej. Faktycznym, niezarejestrowanym operatorem procedury był Waldemar Łopata, który ukrywał się za fasadą legalnie zarejestrowanej działalności w celu uniknięcia odpowiedzialności prawnej.
3. **Fikcję bezpieczeństwa transakcji:** Zapewnienie o pełnym ubezpieczeniu przesyłek

(„Każda przesyłka jest starannie pakowana i ubezpieczona na pełną wartość”), co miało na celu uśpienie czujności i drastyczne obniżenie percepcji ryzyka inwestycyjnego. Jak pokazał dalszy rozwój wydarzeń i wzajemnie wykluczające się komunikaty sprawców, żadne tego typu polisy nie istniały, a towar nigdy nie został fizycznie pozyskany do wysyłki.

Powyższe działania w żadnym stopniu nie stanowią dozwolonej przesady marketingowej (*dolus bonus*), lecz są obiektywnie weryfikowalnymi, bezspornie fałszywymi oświadczeniami co do faktów teraźniejszych. To właśnie ta wykreowana, fałszywa fasada – gwarantująca w mojej ocenie stabilność, bezpieczeństwo i rzetelność – była wyłączną przyczyną dokonania przelewu. Zgodnie z utrwalonym orzecznictwem Sądu Najwyższego dotyczącym subiektywnego kryterium niekorzystnego rozporządzenia mieniem, gdybym posiadał wiedzę, iż kontrahentem jest w istocie podmiot wirtualny, prowadzony „z tylnego siedzenia” przez niezarejestrowaną osobę, podczas gdy formalny właściciel pracuje fizycznie za granicą, a zapewnienia o sklepie i ubezpieczeniu są kłamstwem, **nigdy nie dokonałbym przelewu kwoty 155 000 PLN.**

Tym samym, sprawcy swoim zachowaniem drastycznie i bez mojej wiedzy zwiększyli ryzyko transakcji, doprowadzając mnie do niekorzystnego rozporządzenia mieniem, co wyczerpuje w pełni znamiona czynu z art. 286 § 1 k.k. w zw. z art. 294 § 1 k.k. Całokształt ich zorganizowanych działań przed zawarciem umowy (budowa „wirtualnej fasady”) jednoznacznie dowodzi istnienia zamiaru oszustwa już w chwili oferowania fikcyjnego towaru, co wyklucza możliwość traktowania tej sprawy wyłącznie na płaszczyźnie sporu cywilnego.”

Works cited

1. Treść orzeczenia VII K 982/16 – Portal Orzeczeń Sądu Rejonowego w Opolu, accessed on June 4, 2026, [https://orzeczenia.opole.sr.gov.pl/content/\\$N/155015350003506_VII_K_000982_2_016_Uz_2017-11-02_001](https://orzeczenia.opole.sr.gov.pl/content/$N/155015350003506_VII_K_000982_2_016_Uz_2017-11-02_001)
2. Zamiar osiągnięcia korzyści majątkowej – oszustwo | Tarnów, accessed on June 4, 2026, <https://adwokat-sienicki.pl/2026/04/02/oszustwo-gospodarcze-a-zamiar-osiagniecia-korzysci-majatkowej-jak-ustalic-go-w-praktyce/>
3. Oszustwa w ujęciu karnomaterialnym – Szkoła Policji w Pile, accessed on June 4, 2026, <https://sppila.policja.gov.pl/download/301/223087/JanczakNowakowskaOszustwa.pdf>
4. #16. Oszustwo z art. 286 § 1 Kodeksu karnego, accessed on June 4, 2026, <https://www.adwokat-skoczylas.pl/blog/oszustwo>
5. ODPOWIEDZIALNOŚĆ KARNA ZA OSZUSTWO (art. 286 k.k. ..., accessed on June 4, 2026, <https://www.karh.pl/prawo-karne-gospodarcze/oszustwo-art-286-k-k/>
6. Odpowiedzialność karna za oszustwa internetowe – Prawo karne, accessed on June 4, 2026, <https://www.prawo-karne.info/odpowiedzialnosc-karna-za-oszustwa-internetowe-934-p.html>

7. Treść orzeczenia II AKa 207/21 - Portal Orzeczeń Sądów ..., accessed on June 4, 2026,
[https://orzeczenia.ms.gov.pl/content/\\$N/153500000001006_II_AKa_000207_2021_Uz_2022-05-12_001](https://orzeczenia.ms.gov.pl/content/$N/153500000001006_II_AKa_000207_2021_Uz_2022-05-12_001)
8. Treść orzeczenia II K 572/15, accessed on June 4, 2026,
[https://orzeczenia.krakow-podgorze.sr.gov.pl/content/\\$N/152010200001006_II_K_000572_2015_Uz_2016-03-31_002](https://orzeczenia.krakow-podgorze.sr.gov.pl/content/$N/152010200001006_II_K_000572_2015_Uz_2016-03-31_002)
9. Kryteria ustalania niekorzystnego charakteru rozporządzenia mieniem na gruncie przestępstwa z art. 286 § 1 k.k. Criteria for, accessed on June 4, 2026,
https://www.czpk.pl/dokumenty/zeszyty/2018/zeszyt3/Kys_2018.3.pdf
10. Treść orzeczenia III K 191/07 - Portal Orzeczeń Sądów Powszechnych - nia.ms.gov.pl, accessed on June 4, 2026,
[https://orzeczenia.ms.gov.pl/content/\\$N/155025000001506_III_K_000191_2007_Uz_2014-12-19_002](https://orzeczenia.ms.gov.pl/content/$N/155025000001506_III_K_000191_2007_Uz_2014-12-19_002)
11. Biuletyn Prawa Karnego nr 4/11 - Sąd Najwyższy, accessed on June 4, 2026,
http://www.sn.pl/orzecznictwo/biuletyn_prawa_karnego/biuletyn_prawa_karnego_04_2011.pdf
12. Treść orzeczenia II AKa 419/14 - Portal Orzeczeń Sądu Apelacyjnego w Katowicach, accessed on June 4, 2026,
[https://orzeczenia.katowice.sa.gov.pl/content/\\$N/151500000001006_II_AKa_000419_2014_Uz_2015-01-21_001](https://orzeczenia.katowice.sa.gov.pl/content/$N/151500000001006_II_AKa_000419_2014_Uz_2015-01-21_001)
13. MODELE IMPLEMENTACJI ART. 12 KONWENCJI O PRAWACH OSÓB NIEPEŁNOSPRAWNYCH (KPON) III - AWS - Akademia Wymiaru Sprawiedliwości, accessed on June 4, 2026,
<https://aws.edu.pl/wp-content/uploads/2024/02/Implementacja-t.-III-www.pdf>
14. Treść orzeczenia II K 754/15 - Portal Orzeczeń Sądów Powszechnych - nia.ms.gov.pl, accessed on June 4, 2026,
[https://orzeczenia.ms.gov.pl/content/\\$N/152505250001006_II_K_000754_2015_Uz_2016-09-26_001](https://orzeczenia.ms.gov.pl/content/$N/152505250001006_II_K_000754_2015_Uz_2016-09-26_001)
15. Treść orzeczenia II AKa 273/14 - Portal Orzeczeń Sądu Apelacyjnego w Łodzi, accessed on June 4, 2026,
[https://orzeczenia.lodz.sa.gov.pl/content/\\$N/152500000001006_II_AKa_000273_2014_Uz_2014-12-04_001](https://orzeczenia.lodz.sa.gov.pl/content/$N/152500000001006_II_AKa_000273_2014_Uz_2014-12-04_001)
16. II K 1628/21 Szczegóły orzeczenia - System Analizy Orzeczeń Sądowych - SAOS, accessed on June 4, 2026, <https://www.saos.org.pl/judgments/460526>
17. Oszustwo (art 286 § 1 k.k.) - co mówi kodeks karny o oszustwie? Najważniejsze informacje, accessed on June 4, 2026, <https://chmielniak.com.pl/blog/oszustwo>
18. wartalnik rawno ryminalistyczny - Szkoła Policji w Pile, accessed on June 4, 2026,
<https://sppila.policja.gov.pl/download/301/135610/kwartalnik31.pdf>
19. Treść orzeczenia X Ka 743/13 - Portal Orzeczeń Sądu Okręgowego w Warszawie, accessed on June 4, 2026,
[https://orzeczenia.warszawa.so.gov.pl/content/\\$N/154505000003006_X_Ka_000743_2013_Uz_2013-11-05_001](https://orzeczenia.warszawa.so.gov.pl/content/$N/154505000003006_X_Ka_000743_2013_Uz_2013-11-05_001)
20. VALIDITY Article 4:101: Matters not Covered This chapter does not deal with invalidity arising from illegality, accessed on June 4, 2026,

- <https://www.law.kuleuven.be/web/mstorme/c4a.pdf>
21. Kersley, R.H., M.A., LL.M./ Broom, Herbert, LL.D., A Selection of Legal Maxims, 10th ed. London, 1939 | Trans-Lex.org, accessed on June 4, 2026,
<https://www.trans-lex.org/110650/>
 22. Missed Opportunities: Louisiana's Version of the Rules of Professional Conduct - LSU Law Digital Commons, accessed on June 4, 2026,
https://digitalcommons.law.lsu.edu/context/lalrev/article/5868/viewcontent/1__Smith.pdf
 23. II NSKP 8/23 - Sąd Najwyższy, accessed on June 4, 2026,
<http://www.sn.pl/sites/orzecznictwo/orzeczenia3/ii%20naskp%208-23.pdf>
 24. WYROK UZASADNIENIE - Sąd Apelacyjny w Warszawie, accessed on June 4, 2026,
[https://orzeczenia.waw.sa.gov.pl/content.pdf/\\$002fneurocourt\\$002fpublished\\$002f15\\$002f450000\\$002f0000503\\$002fACa\\$002f2012\\$002f001167\\$002f154500000000503_I_ACa_001167_2012_Uz_2013-04-04_002-publ.xml?t:ac=\\$N/154500000000503_I_ACa_001167_2012_Uz_2013-04-04_002](https://orzeczenia.waw.sa.gov.pl/content.pdf/$002fneurocourt$002fpublished$002f15$002f450000$002f0000503$002fACa$002f2012$002f001167$002f154500000000503_I_ACa_001167_2012_Uz_2013-04-04_002-publ.xml?t:ac=$N/154500000000503_I_ACa_001167_2012_Uz_2013-04-04_002)
 25. Treść orzeczenia XVII AmA 170/14 - Portal Orzeczeń Sądów Powszechnych, accessed on June 4, 2026,
[https://orzeczenia.ms.gov.pl/content/\\$N/154505000005127_XVII_AmA_000170_2014_Uz_2016-08-10_001](https://orzeczenia.ms.gov.pl/content/$N/154505000005127_XVII_AmA_000170_2014_Uz_2016-08-10_001)
 26. Firmanctwo: Działalność gospodarcza pod cudzym szyldem jest karana - rp.pl - PRO, accessed on June 4, 2026,
<https://pro.rp.pl/prawo-w-firmie/art4903691-firmanctwo-dzialalnosc-gospodarcza-pod-cudzym-szyldem-jest-karana>
 27. #35. Zatajenie prowadzenia działalności gospodarczej (tzw. firmanctwo) – art. 55 KKS, accessed on June 4, 2026,
<https://www.adwokat-skoczylas.pl/blog/zatajenie-prowadzenia-dzialalnosci-gospodarczej-firmanctwo>
 28. POSTANOWIENIE - Sąd Najwyższy, accessed on June 4, 2026,
<http://www.sn.pl/sites/orzecznictwo/Orzeczenia3/IV%20KK%20446-21.pdf>
 29. Treść orzeczenia II AKa 450/17 - Portal Orzeczeń Sądów Powszechnych - nia.ms.gov.pl, accessed on June 4, 2026,
[https://orzeczenia.ms.gov.pl/content/\\$N/154500000001006_II_AKa_000450_2017_Uz_2019-01-31_002](https://orzeczenia.ms.gov.pl/content/$N/154500000001006_II_AKa_000450_2017_Uz_2019-01-31_002)
 30. Współsprawstwo a pomocnictwo - Sprawy karne, accessed on June 4, 2026,
<https://sprawy-karne.biz.pl/wspolsprawstwo-a-pomocnictwo/>
 31. Przestępstwo oszustwa w tzw. klasycznej postaci w ujęciu prawnoporównawczym, accessed on June 4, 2026,
<https://journals.umcs.pl/sil/article/viewFile/5553/pdf>
 32. Treść orzeczenia II K 130/15 - Portal Orzeczeń Sądu Okręgowego w Gorzowie Wielkopolskim, accessed on June 4, 2026,
[https://orzeczenia.gorzow-wlkp.so.gov.pl/content/\\$N/155505000001006_II_K_000130_2015_Uz_2016-08-03_002](https://orzeczenia.gorzow-wlkp.so.gov.pl/content/$N/155505000001006_II_K_000130_2015_Uz_2016-08-03_002)
 33. II K 81/13 Szczegóły orzeczenia - System Analizy Orzeczeń Sądowych - SAOS, accessed on June 4, 2026, <https://www.saos.org.pl/judgments/48884>

34. Zabezpieczenie treści internetowych do celów dowodowych - Notariusz na Woli, accessed on June 4, 2026,
<https://www.notariusznawoli.com/blog/jak-zabezpieczyc-tresci-internetowe-do-celow-dowodowych>
35. Co to jest protokół z otwarcia strony internetowej? - Notariusz na Woli, accessed on June 4, 2026,
<https://www.notariusznawoli.com/blog/czy-notariusz-moze-uwiarygodnic-dowod-ze-strony-internetowej>
36. Protokół z otwarcia strony internetowej - Legalizacje Dokumentów i Apostille | MSZ, Ambasady, Sąd, accessed on June 4, 2026,
<https://legalizacjedokumentow.pl/protokol-z-otwarcia-strony-internetowej/>